



EVERY FRENCHMAN SHALL ENJOY CIVIL RIGHTS

THE NAPOLEONIC CODE (1804)

IN CONTEXT

FOCUS

Law codes, civil rights

BEFORE

6th century CE The *Corpus juris civilis* of Roman law provides a foundation for civil law across much of Europe.

1215 England's Magna Carta includes a number of civil and human rights.

1791 The first 10 amendments to the US Constitution of 1787 form the Bill of Rights.

AFTER

1881–1883 Egyptian politician Youssef Wahba translates the Napoleonic Code into Arabic.

1896 Germany promulgates its own Civil Code, which also influences those of Japan (1896), Switzerland (1907), Turkey (1926), and others.

2012 The Commission supérieure de codification recommends that French legal codes are no longer updated.

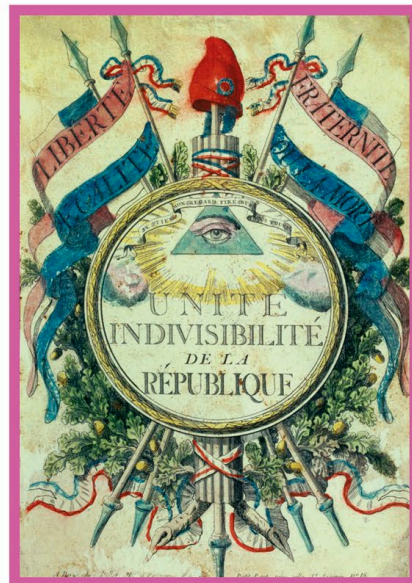
The leaders of the French Revolution (1789–1799) recognized the urgent need for an overarching legal code for France. Historically, differing customary laws had developed across the French regions. To complicate matters, marriage and family life came under separate canon law (laws made by the Roman Catholic Church), and other laws had been created by royal decree. This had resulted in a confusing array of conflicting legislation, and many feudal lords had secured exemptions. To consolidate its power, the new National Assembly set up a special commission to overhaul the legal system and establish a civil code for the whole nation based on the Revolution's key principles.

Napoleon takes charge

When the Revolution descended into the murderous chaos known as the Reign of Terror, General Napoleon Bonaparte seized power in 1799. Elected as First Consul in

1800, he quickly took control of the special commission charged with overhauling France's laws. The commission met more than 80 times over the next 4 years to formulate the Napoleonic Code, with Napoleon frequently overseeing the discussions.

The Revolution had paved the way for the new Code by abolishing the monarchy, suppressing the power of the Church and medieval trade guilds, and creating a new French national identity. The Code



The Napoleonic Code is based on the French Revolution's ideals of liberty, equality, and fraternity in a united France, spelled out on the banners and shield of this 1792 Revolutionary poster.